

STRICTLY CONFIDENTIAL - MERGER AND ACQUISITION AGREEMENT

AGREEMENT AND PLAN OF MERGER

by and among

NEXUS GLOBAL HOLDINGS INC.,

ASTRAL ACQUISITION SUB LLC,

and

QUANTUM DYNAMICS LLC

Dated as of August 11, 2026

ARTICLE I

THE MERGER

1.1 The Merger. Upon the terms and subject to the conditions set forth in this Agreement, and in accordance with the Delaware Limited Liability Company Act (the "DLLCA"), at the Effective Time, Astral Acquisition Sub LLC ("Merger Sub") shall be merged with and into Quantum Dynamics LLC (the "Company"). Following the Merger, the separate corporate existence of Merger Sub shall cease, and the Company shall continue as the surviving company (the "Surviving Company") and shall succeed to and assume all the rights and obligations of Merger Sub in accordance with the DLLCA.

1.2 Closing. The closing of the Merger (the "Closing") shall take place at 10:00 a.m., Eastern Time, on October 15, 2026 (the "Closing Date"), provided that all conditions set forth in Article VII have been satisfied or waived.

1.3 Effective Time. Subject to the provisions of this Agreement, as soon as practicable on the Closing Date, the parties shall file a certificate of merger with the Secretary of State of the State of Delaware.

ARTICLE II

EFFECT ON THE CAPITAL STOCK OF THE CONSTITUENT CORPORATIONS

2.1 Conversion of Securities. The aggregate consideration to be paid by Nexus Global Holdings Inc. ("Parent") for all outstanding equity interests of the Company shall be \$1,450,000,000 (One Billion Four Hundred Fifty Million Dollars) (the "Merger Consideration").

The Merger Consideration shall be paid in cash, minus any applicable Debt, plus any Estimated Working Capital Adjustment.

2.2 Break-Up Fee. In the event that this Agreement is terminated by the Company due to a superior alternative proposal, the Company shall pay to Parent a break-up fee of \$50,000,000 (Fifty Million Dollars) within two (2) business days of such termination.

ARTICLE III

REPRESENTATIONS AND WARRANTIES OF THE COMPANY

3.1 Organization. The Company is a limited liability company duly organized, validly existing, and in good standing under the laws of the State of Delaware.

3.2 Capitalization. The authorized equity of the Company consists of 10,000,000 Class A Units.

3.3 Intellectual Property. The Company owns all right, title, and interest in the "Aegis Core" software patents, without any encumbrances.

ARTICLE IV

INDEMNIFICATION

4.1 Survival. The representations and warranties of the Company contained in this Agreement shall survive the Closing for a period of eighteen (18) months, except for Fundamental Representations which shall survive indefinitely.

4.2 Indemnification by the Sellers. The Sellers shall indemnify and hold harmless the Parent Indemnitees against any Losses arising out of (a) any breach of representation or warranty made by the Company, and (b) any pre-Closing Taxes.

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ARTICLE 5: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 5.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 5.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 5.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 5.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 5.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 5.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. 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Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 5.4 shall be construed to limit the obligations under Section 6.9. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 5.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 5.6 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 6: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 6.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 6.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 6.3 shall be construed to limit the obligations under Section 7.9. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. 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ARTICLE 7: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 7.9 shall be construed to limit the obligations under Section 8.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. 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ARTICLE 8: ADDITIONAL COVENANTS AND STIPULATIONS

No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 8.2 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 8.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. 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ARTICLE 9: ADDITIONAL COVENANTS AND STIPULATIONS

No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 9.8 shall be construed to limit the obligations under Section 10.9. 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ARTICLE 10: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 10.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 10.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 10.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 10.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 10.3 shall be construed to limit the obligations under Section 11.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 10.5 shall be construed to limit the obligations under Section 11.4. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 10.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 10.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 10.9 shall be construed to limit the obligations under Section 11.2. 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ARTICLE 11: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 11.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 11.8 shall be construed to limit the obligations under Section 12.5. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. 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ARTICLE 12: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 12.3 shall be construed to limit the obligations under Section 13.7. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 12.5 shall be construed to limit the obligations under Section 13.5. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 12.4 shall be construed to limit the obligations under Section 13.4. The foregoing notwithstanding, nothing in Section 12.3 shall be construed to limit the obligations under Section 13.4. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 12.7 shall be construed to limit the obligations under Section 13.3. The foregoing notwithstanding, nothing in Section 12.7 shall be construed to limit the obligations under Section 13.6. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 12.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 12.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 12.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 12.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 12.8 shall be construed to limit the obligations under Section 13.4.

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ARTICLE 13: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 13.9 shall be construed to limit the obligations under Section 14.5. Any disputes arising from the interpretation of Section 13.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 13.1 shall be construed to limit the obligations under Section 14.9. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 13.6 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 13.2 shall be construed to limit the obligations under Section 14.9. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 13.4 shall be construed to limit the obligations under Section 14.5. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 13.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 13.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 13.1 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 13.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 13.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 13.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 14: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 14.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 14.8 shall be construed to limit the obligations under Section 15.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 14.3 shall be construed to limit the obligations under Section 15.8. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 14.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 14.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 14.2 shall be construed to limit the obligations under Section 15.7. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 14.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 14.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 14.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 14.5 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 14.8 shall be construed to limit the obligations under Section 15.9. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 14.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 14.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 14.3 shall be construed to limit the obligations under Section 15.2. Any disputes arising from the interpretation of Section 14.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 15: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 15.4 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 15.9 shall be construed to limit the obligations under Section 16.5. Any disputes arising from the interpretation of Section 15.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 15.6 shall be construed to limit the obligations under Section 16.4. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 15.3 shall be construed to limit the obligations under Section 16.6. The foregoing notwithstanding, nothing in Section 15.7 shall be construed to limit the obligations under Section 16.8. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 15.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 15.1 shall be construed to limit the obligations under Section 16.6. Any disputes arising from the interpretation of Section 15.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 16: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 16.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 16.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 16.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 16.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 16.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 16.8 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 16.4 shall be construed to limit the obligations under Section 17.8. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 17: ADDITIONAL COVENANTS AND STIPULATIONS

The foregoing notwithstanding, nothing in Section 17.4 shall be construed to limit the obligations under Section 18.5. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 17.3 shall be construed to limit the obligations under Section 18.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 17.6 shall be construed to limit the obligations under Section 18.1. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 17.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 17.7 shall be construed to limit the obligations under Section 18.5. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive.

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ARTICLE 18: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 18.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 18.2 shall be construed to limit the obligations under Section 19.5. The foregoing notwithstanding, nothing in Section 18.4 shall be construed to limit the obligations under Section 19.7. Any disputes arising from the interpretation of Section 18.6 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 18.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 18.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 18.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 18.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 18.2 shall be construed to limit the obligations under Section 19.2. The foregoing notwithstanding, nothing in Section 18.6 shall be construed to limit the obligations under Section 19.9. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 18.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 18.8 shall be construed to limit the obligations under Section 19.7. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 18.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 18.4 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 19: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 19.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 19.6 shall be construed to limit the obligations under Section 20.2. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 19.5 shall be construed to limit the obligations under Section 20.5. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 19.5 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 19.2 shall be construed to limit the obligations under Section 20.1. Any disputes arising from the interpretation of Section 19.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 19.1 shall be construed to limit the obligations under Section 20.7. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 19.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 19.6 shall be construed to limit the obligations under Section 20.4. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 19.2 shall be construed to limit the obligations under Section 20.3. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 19.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 20: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 20.9 shall be construed to limit the obligations under Section 21.1. Any disputes arising from the interpretation of Section 20.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 20.1 shall be construed to limit the obligations under Section 21.7. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 20.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 20.5 shall be construed to limit the obligations under Section 21.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 20.2 shall be construed to limit the obligations under Section 21.5. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 20.5 shall be construed to limit the obligations under Section 21.7. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 20.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 20.8 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 21: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 21.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 21.1 shall be construed to limit the obligations under Section 22.7. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 21.8 shall be construed to limit the obligations under Section 22.4. Any disputes arising from the interpretation of Section 21.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 21.9 shall be construed to limit the obligations under Section 22.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 21.3 shall be construed to limit the obligations under Section 22.6. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 21.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 21.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 21.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 21.8 shall be construed to limit the obligations under Section 22.2. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 21.5 shall be construed to limit the obligations under Section 22.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 22: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 22.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 22.8 shall be construed to limit the obligations under Section 23.9. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 22.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 22.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 22.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 22.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 22.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 22.7 shall be construed to limit the obligations under Section 23.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 22.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 22.3 shall be construed to limit the obligations under Section 23.8. Any disputes arising from the interpretation of Section 22.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 22.5 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 22.1 shall be construed to limit the obligations under Section 23.9. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 22.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 22.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 22.5 shall be construed to limit the obligations under Section 23.9. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 22.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 23: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 23.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 23.2 shall be construed to limit the obligations under Section 24.3. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 23.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 23.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 23.3 shall be construed to limit the obligations under Section 24.1. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 23.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 23.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive.

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ARTICLE 24: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 24.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 24.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 24.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 24.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 24.9 shall be construed to limit the obligations under Section 25.5. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 24.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 24.4 shall be construed to limit the obligations under Section 25.1. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 24.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 24.8 shall be construed to limit the obligations under Section 25.8. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 24.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 25: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 25.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 25.5 shall be construed to limit the obligations under Section 26.7. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 25.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 25.3 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 25.1 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 25.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 25.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 25.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 25.7 shall be construed to limit the obligations under Section 26.7. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 25.3 shall be construed to limit the obligations under Section 26.2. Any disputes arising from the interpretation of Section 25.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 25.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 25.5 shall be construed to limit the obligations under Section 26.9. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 25.4 shall be construed to limit the obligations under Section 26.4. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 25.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 26: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 26.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 26.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 26.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 26.2 shall be construed to limit the obligations under Section 27.9. Any disputes arising from the interpretation of Section 26.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 26.4 shall be construed to limit the obligations under Section 27.9. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 26.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement.

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ARTICLE 27: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 27.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 27.6 shall be construed to limit the obligations under Section 28.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 27.8 shall be construed to limit the obligations under Section 28.4. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 27.6 shall be construed to limit the obligations under Section 28.2. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 27.3 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 27.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 28: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 28.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 28.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 28.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 28.2 shall be construed to limit the obligations under Section 29.9. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 28.4 shall be construed to limit the obligations under Section 29.3. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 28.6 shall be construed to limit the obligations under Section 29.5. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 28.3 shall be construed to limit the obligations under Section 29.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 28.1 shall be construed to limit the obligations under Section 29.4. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 28.7 shall be construed to limit the obligations under Section 29.6. Any disputes arising from the interpretation of Section 28.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 28.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 28.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 28.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 28.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 29: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 29.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 29.6 shall be construed to limit the obligations under Section 30.5. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 29.3 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 29.2 shall be construed to limit the obligations under Section 30.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 29.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 29.9 shall be construed to limit the obligations under Section 30.6. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 29.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 29.5 shall be construed to limit the obligations under Section 30.5. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 29.3 shall be construed to limit the obligations under Section 30.8. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 29.6 shall be construed to limit the obligations under Section 30.4.

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ARTICLE 30: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 30.6 shall be construed to limit the obligations under Section 31.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 30.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 30.2 shall be construed to limit the obligations under Section 31.2. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 30.1 shall be construed to limit the obligations under Section 31.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 30.9 shall be construed to limit the obligations under Section 31.5. Any disputes arising from the interpretation of Section 30.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 30.2 shall be construed to limit the obligations under Section 31.3. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 30.4 shall be construed to limit the obligations under Section 31.2. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 30.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 30.4 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 30.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 30.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 30.4 shall be construed to limit the obligations under Section 31.4. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 31: ADDITIONAL COVENANTS AND STIPULATIONS

No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 31.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 31.1 shall be construed to limit the obligations under Section 32.8. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 31.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 31.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 31.8 shall be construed to limit the obligations under Section 32.9. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 31.6 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 31.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 31.6 shall be construed to limit the obligations under Section 32.3. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 31.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 31.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 31.3 shall be construed to limit the obligations under Section 32.4. Any disputes arising from the interpretation of Section 31.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 31.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default.

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ARTICLE 32: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 32.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 32.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 32.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 32.4 shall be construed to limit the obligations under Section 33.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 32.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 32.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 32.2 shall be construed to limit the obligations under Section 33.7. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 32.8 shall be construed to limit the obligations under Section 33.8. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 32.4 shall be construed to limit the obligations under Section 33.7. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 32.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 32.1 shall be construed to limit the obligations under Section 33.7. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 32.7 shall be construed to limit the obligations under Section 33.5.

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ARTICLE 33: ADDITIONAL COVENANTS AND STIPULATIONS

Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 33.7 shall be construed to limit the obligations under Section 34.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 33.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 33.7 shall be construed to limit the obligations under Section 34.5. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 33.9 shall be construed to limit the obligations under Section 34.9. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 33.9 shall be construed to limit the obligations under Section 34.6. Any disputes arising from the interpretation of Section 33.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 33.4 shall be construed to limit the obligations under Section 34.1. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 33.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 33.4 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 34: ADDITIONAL COVENANTS AND STIPULATIONS

Any disputes arising from the interpretation of Section 34.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 34.2 shall be construed to limit the obligations under Section 35.9. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 34.2 shall be construed to limit the obligations under Section 35.6. The foregoing notwithstanding, nothing in Section 34.2 shall be construed to limit the obligations under Section 35.2. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 34.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 34.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 34.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 34.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 34.9 shall be construed to limit the obligations under Section 35.4. Any disputes arising from the interpretation of Section 34.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 34.8 shall be construed to limit the obligations under Section 35.2. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 34.8 shall be construed to limit the obligations under Section 35.4. The foregoing notwithstanding, nothing in Section 34.4 shall be construed to limit the obligations under Section 35.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 34.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 34.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 34.6 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 35: ADDITIONAL COVENANTS AND STIPULATIONS

The foregoing notwithstanding, nothing in Section 35.2 shall be construed to limit the obligations under Section 36.2. The foregoing notwithstanding, nothing in Section 35.3 shall be construed to limit the obligations under Section 36.4. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 35.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 35.8 shall be construed to limit the obligations under Section 36.8. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 35.2 shall be construed to limit the obligations under Section 36.6. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 35.1 shall be construed to limit the obligations under Section 36.4. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 35.8 shall be construed to limit the obligations under Section 36.2. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 35.1 shall be construed to limit the obligations under Section 36.5. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 35.3 shall be construed to limit the obligations under Section 36.6. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 35.7 shall be construed to limit the obligations under Section 36.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 36: ADDITIONAL COVENANTS AND STIPULATIONS

No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 36.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 36.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 36.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 36.8 shall be construed to limit the obligations under Section 37.7. The foregoing notwithstanding, nothing in Section 36.2 shall be construed to limit the obligations under Section 37.8. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 36.1 shall be construed to limit the obligations under Section 37.6. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 36.1 shall be construed to limit the obligations under Section 37.8. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 36.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 36.1 shall be construed to limit the obligations under Section 37.8. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 36.2 shall be construed to limit the obligations under Section 37.1. The foregoing notwithstanding, nothing in Section 36.1 shall be construed to limit the obligations under Section 37.4. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 36.6 shall be construed to limit the obligations under Section 37.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 36.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

STRICTLY CONFIDENTIAL - MERGER AND ACQUISITION AGREEMENT

ARTICLE 37: ADDITIONAL COVENANTS AND STIPULATIONS

No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 37.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 37.5 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 37.5 shall be construed to limit the obligations under Section 38.8. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 37.5 shall be construed to limit the obligations under Section 38.8. Any disputes arising from the interpretation of Section 37.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 37.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 37.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

STRICTLY CONFIDENTIAL - MERGER AND ACQUISITION AGREEMENT

ARTICLE 38: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 38.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 38.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 38.8 shall be construed to limit the obligations under Section 39.3. The foregoing notwithstanding, nothing in Section 38.4 shall be construed to limit the obligations under Section 39.7. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 38.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 38.9 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 38.3 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive.

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ARTICLE 39: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 39.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 39.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 39.4 shall be construed to limit the obligations under Section 40.5. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 39.6 shall be construed to limit the obligations under Section 40.4. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 39.6 shall be construed to limit the obligations under Section 40.5. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 39.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 39.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 39.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 39.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 39.8 shall be construed to limit the obligations under Section 40.7.

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ARTICLE 40: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 40.1 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 40.8 shall be construed to limit the obligations under Section 41.3. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 40.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 40.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 40.6 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 40.2 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 40.9 shall be construed to limit the obligations under Section 41.9. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 40.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 40.4 shall be construed to limit the obligations under Section 41.2. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 40.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 40.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 40.2 shall be construed to limit the obligations under Section 41.7. Any disputes arising from the interpretation of Section 40.7 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 41: ADDITIONAL COVENANTS AND STIPULATIONS

The foregoing notwithstanding, nothing in Section 41.3 shall be construed to limit the obligations under Section 42.1. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 41.1 shall be construed to limit the obligations under Section 42.2. The foregoing notwithstanding, nothing in Section 41.6 shall be construed to limit the obligations under Section 42.3. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 41.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 41.8 shall be construed to limit the obligations under Section 42.4. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 41.1 shall be construed to limit the obligations under Section 42.9. Any disputes arising from the interpretation of Section 41.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 41.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 41.6 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 41.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 41.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 41.1 shall be construed to limit the obligations under Section 42.6.

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ARTICLE 42: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 42.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 42.9 shall be construed to limit the obligations under Section 43.5. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 42.1 shall be construed to limit the obligations under Section 43.9. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 42.7 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 42.5 shall be construed to limit the obligations under Section 43.9. The foregoing notwithstanding, nothing in Section 42.2 shall be construed to limit the obligations under Section 43.4. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 42.6 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 42.9 shall be construed to limit the obligations under Section 43.2. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 42.8 shall be construed to limit the obligations under Section 43.6. Any disputes arising from the interpretation of Section 42.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 42.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 42.5 shall be construed to limit the obligations under Section 43.9. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default.

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ARTICLE 43: ADDITIONAL COVENANTS AND STIPULATIONS

The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 43.1 shall be construed to limit the obligations under Section 44.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 43.1 shall be construed to limit the obligations under Section 44.4. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 43.6 shall be construed to limit the obligations under Section 44.7. Any disputes arising from the interpretation of Section 43.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 43.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 43.9 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 43.6 shall be construed to limit the obligations under Section 44.4. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 43.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 43.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 43.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 43.3 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 43.1 shall be construed to limit the obligations under Section 44.1. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 43.3 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 44: ADDITIONAL COVENANTS AND STIPULATIONS

Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 44.6 shall be construed to limit the obligations under Section 45.1. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 44.8 shall be construed to limit the obligations under Section 45.9. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 44.3 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 44.2 shall be construed to limit the obligations under Section 45.9. Any disputes arising from the interpretation of Section 44.3 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 44.2 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 44.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 44.8 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 44.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 44.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 44.5 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 44.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 44.5 shall be construed to limit the obligations under Section 45.1. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 44.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 45: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 45.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 45.7 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 45.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 45.9 shall be construed to limit the obligations under Section 46.5. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 45.7 shall be construed to limit the obligations under Section 46.9. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 45.9 shall be construed to limit the obligations under Section 46.7. Any disputes arising from the interpretation of Section 45.3 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 45.3 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 45.2 shall be construed to limit the obligations under Section 46.1. The foregoing notwithstanding, nothing in Section 45.6 shall be construed to limit the obligations under Section 46.9. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 45.7 shall be construed to limit the obligations under Section 46.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 45.2 shall be construed to limit the obligations under Section 46.4. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive.

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ARTICLE 46: ADDITIONAL COVENANTS AND STIPULATIONS

The foregoing notwithstanding, nothing in Section 46.8 shall be construed to limit the obligations under Section 47.9. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 46.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 46.6 shall be construed to limit the obligations under Section 47.9. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 46.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 46.5 shall be construed to limit the obligations under Section 47.6. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 46.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 46.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 46.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 46.1 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 46.5 shall be construed to limit the obligations under Section 47.4. The foregoing notwithstanding, nothing in Section 46.7 shall be construed to limit the obligations under Section 47.3. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 46.3 shall be construed to limit the obligations under Section 47.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 46.2 shall be construed to limit the obligations under Section 47.2. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 46.1 shall be subject to mandatory arbitration in Wilmington, Delaware.

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ARTICLE 47: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 47.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 47.2 shall be construed to limit the obligations under Section 48.3. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 47.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 47.4 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 47.2 shall be construed to limit the obligations under Section 48.7. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 47.7 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Any disputes arising from the interpretation of Section 47.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 47.6 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The foregoing notwithstanding, nothing in Section 47.7 shall be construed to limit the obligations under Section 48.3. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 47.1 shall be construed to limit the obligations under Section 48.3. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply.

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ARTICLE 48: ADDITIONAL COVENANTS AND STIPULATIONS

The foregoing notwithstanding, nothing in Section 48.9 shall be construed to limit the obligations under Section 49.1. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 48.8 shall be construed to limit the obligations under Section 49.7. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 48.5 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The foregoing notwithstanding, nothing in Section 48.8 shall be construed to limit the obligations under Section 49.1. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 48.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 48.9 shall be subject to mandatory arbitration in Wilmington, Delaware. Any disputes arising from the interpretation of Section 48.8 shall be subject to mandatory arbitration in Wilmington, Delaware. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 48.1 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 48.5 shall be construed to limit the obligations under Section 49.5. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Any disputes arising from the interpretation of Section 48.3 shall be subject to mandatory arbitration in Wilmington, Delaware. The foregoing notwithstanding, nothing in Section 48.4 shall be construed to limit the obligations under Section 49.1.

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ARTICLE 49: ADDITIONAL COVENANTS AND STIPULATIONS

Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Any disputes arising from the interpretation of Section 49.5 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Any disputes arising from the interpretation of Section 49.1 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 49.8 shall be subject to mandatory arbitration in Wilmington, Delaware. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The foregoing notwithstanding, nothing in Section 49.7 shall be construed to limit the obligations under Section 50.2. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 49.5 shall be construed to limit the obligations under Section 50.5. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The foregoing notwithstanding, nothing in Section 49.9 shall be construed to limit the obligations under Section 50.3. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 49.8 shall be subject to mandatory arbitration in Wilmington, Delaware. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. The foregoing notwithstanding, nothing in Section 49.4 shall be construed to limit the obligations under Section 50.4. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. No waiver by any party of any default, misrepresentation, or breach of warranty or covenant hereunder shall be deemed to extend to any prior or subsequent default. Subject to the limitations set forth in the Disclosure Schedule, the parties agree that standard commercial reasonableness shall apply. Any disputes arising from the interpretation of Section 49.4 shall be subject to mandatory arbitration in Wilmington, Delaware. Except as otherwise expressly provided herein, all remedies available under this Agreement are cumulative and not exclusive. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry. Each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation, and execution of this Agreement. The term 'Material Adverse Effect' shall not include any changes in macroeconomic conditions generally affecting the industry.

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ARTICLE 50: SPECIAL REGULATORY CONDITIONS

50.1 CFIUS Approval. The consummation of the Merger is strictly conditioned upon receiving written clearance from the Committee on Foreign Investment in the United States (CFIUS) no later than September 1, 2026. If clearance is not obtained by this date, either party may terminate the Agreement without penalty.